

*** § 9.41 Emergency assessment for immediate observation, care, and treatment; powers of certain peace officers and police officers.**

(a) Any peace officer, when acting pursuant to their special duties, or police officer who is a member of the state police or of an authorized police department or force or of a sheriff's department may take into custody any person who appears to be mentally ill and is conducting themselves in a manner which is likely to result in serious harm to the person or others. Such officer may direct the removal of such person or remove such person to any hospital specified in subdivision (a) of section 9.39 of this article, or any comprehensive psychiatric emergency program specified in subdivision (a) of section 9.40 of this article, or pending such person's examination or admission to any such hospital or program, temporarily detain any such person in another safe and comfortable place, in which event, such officer shall immediately notify the director of community services or, if there be none, the health officer of the city or county of such action. Provided, however, a peace officer or police officer directing the removal of a person who is conducting themselves in a manner which is likely to result in serious harm as defined by paragraph three of subdivision (c) of section 9.01 of this chapter, shall request the transport of such person be conducted by emergency medical services, if practicable based on: the person's potential medical needs and the capacity limits of the local emergency medical services agencies, as determined by the local emergency medical services agencies; and the safety of the person being removed, as determined by the officer.

(b) A person otherwise determined to meet the criteria for an emergency assessment pursuant to this section may voluntarily agree to be transported to a crisis stabilization center under section 36.01 of this chapter for care and treatment and, in accordance with this article, an assessment by the crisis stabilization center determines that they are able to meet the service needs of the person.

* NB Effective until July 1, 2027

*** § 9.41 Emergency admissions for immediate observation, care, and treatment; powers of certain peace officers and police officers.**

Any peace officer, when acting pursuant to their special duties, or police officer who is a member of the state police or of an authorized police department or force or of a sheriff's department may take into custody any person who appears to be mentally ill and is conducting themselves in a manner which is likely to result in serious harm to themselves or others. Such officer may direct the removal of such person or remove such person to any hospital specified in subdivision (a) of section 9.39 of this article or, pending such person's examination or admission to any such hospital, temporarily detain any such person in another safe and comfortable place, in which event, such officer shall immediately notify the director of community services or, if there be none, the health officer of the city or county of such action. Provided, however, a peace officer or police officer directing the removal of a person who is conducting themselves in a manner which is likely to result in serious harm as defined by paragraph three of subdivision (c) of section 9.01 of this article, shall request the transport of such person be conducted by emergency medical services, if practicable based on: the person's potential medical needs and the capacity limits of the local emergency medical services agencies, as determined by the local emergency medical services agencies; and the safety of the person being removed, as determined by the officer.

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